John G. Roberts, Jr.

Chief justice John G. Roberts, Jr., 2005.

John G. Roberts, Jr. (born January 27, 1955, Buffalo, New York, U.S.) is the 17th chief justice of the United States (2005–).

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Roberts was the second of four children born to John (Jack) G. Roberts, Sr., and Rosemary Roberts (née Podrasky) in Buffalo, New York, in 1955. Roberts, Sr., worked as an executive for the Bethlehem Steel Corporation, and, when he received a promotion to work at a new steel plant in Indiana in the early 1960s, the family moved there, settling in Long Beach, Indiana.

Education and early career

As is typical of future U.S. Supreme Court justices, Roberts excelled in school. He spent his high school years at La Lumiere, a recently established Roman Catholic boarding school in La Porte, Indiana. He graduated first in his class and was cocaptain of the football team. He then attended Harvard University, where he graduated summa cum laude in 1976 with a degree in history. At Harvard Law School he served as managing editor of the *Harvard Law Review* before graduating magna cum laude in 1979.

After law school, Roberts spent two years clerking for federal judges—first for Judge Henry J. Friendly of the U.S. Court of Appeals for the Second Circuit and next for then associate justice William H. Rehnquist of the Supreme Court. Afterward, Roberts worked in the administration of Republican Pres. Ronald Reagan, first in the attorney general's office and then in the White House counsel's office.

From 1986 to 1989 and from 1993 to 2003 Roberts enjoyed a prominent and successful career as an appellate lawyer with the Washington, D.C., law firm of Hogan & Hartson, during which he argued 39 cases before the Supreme Court, winning 25. From 1989 to 1993 he served as principal deputy solicitor general in

the Department of Justice during the administration of Republican Pres. George H.W. Bush. Roberts also regularly appeared on National Public Radio (NPR) to provide analysis of pending Supreme Court cases. Unlike his public service as an attorney, which involved employment in Republican administrations only, Roberts's private practice did not have an obvious partisan or ideological leaning. In 2000, he did briefly assist the presidential campaign of Republican candidate George W. Bush in its litigation concerning the counting of ballots in Florida (*see Bush* v. *Gore*).

Pres. George H.W. Bush nominated Roberts to the U.S. Court of Appeals for the District of Columbia Circuit in 1992, but the Senate did not confirm him. In 2001 Pres. George W. Bush named Roberts for a seat on the same court, but the nomination stalled after Vermont Sen. Jim Jeffords left the Republican Party (to become an independent), giving the Democrats effective control of the Senate. Bush reappointed Roberts for the same position two more times before Roberts was finally confirmed in May 2003, after Republicans regained control of the Senate following the 2002 elections. During Roberts's confirmation hearings, Republican senators complained about what they characterized as an 11-year delay of action on Roberts's nominations by Democratic senators. But Democratic Sen. Patrick Leahy of Vermont defended the Democratic-controlled Senate's inaction in 1992, asserting that it was consistent with the longstanding "Strom Thurmond rule" (named for the long-serving senator from South Carolina), which, as Leahy put it, meant that "the President, Republican or Democrat, except for extraordinary circumstances, and we have made some exceptions, does not get a nominee through after about July or so of a presidential election year."

Nomination to the Supreme Court

After serving as a federal judge for two years, Roberts was nominated to the Supreme Court by George W. Bush in July 2005 to fill the seat vacated by associate justice Sandra Day O'Connor, who was retiring. But before Roberts could be confirmed by the Senate, then chief justice William H. Rehnquist died. Roberts's nomination as associate justice was withdrawn, and in September Bush nominated Roberts to replace Rehnquist as chief justice (O'Connor was ultimately replaced by Samuel A. Alito, Jr.).

John G. Roberts, Jr.: swearing-in ceremony

American jurist John G. Roberts, Jr., being sworn in as chief justice of the United States by Associate Justice John Paul Stevens, September 29, 2005.

During his confirmation hearings, Roberts spoke of the importance of—and his commitment to—judicial restraint, the idea that judges should simply and neutrally apply the law rather than engage in creative law-making (*see also* judicial activism). “Judges are like umpires. Umpires don’t make the rules, they apply them,” he declared. Continuing his baseball analogy, he promised that, if confirmed, “I will remember that it’s my job to call balls and strikes, and not to pitch or bat.” He was widely praised by senators from both parties for his intelligence, credentials, diligence, and professionalism. But Democratic senators expressed concerns about his commitment to civil rights. Democratic Rep. John Lewis of Georgia—who himself had played a prominent role in the American civil rights movement—testified in opposition to Roberts’s confirmation, expressing his concern that Roberts would undermine or even overturn the progress made by the movement. Other Democrats cited memoranda Roberts had written in his years working in the Reagan administration that included dismissive comments both about discrimination against women and minorities and about legal efforts to remedy it. Roberts and his defenders argued that he had merely been expressing the views of his clients—Republican administrations—as attorneys are required to do. In keeping with contemporary practice among nominees to the highest court, Roberts refused to answer questions about specific issues, noting the possibility that they could come before the Court as legal matters. Roberts was confirmed by the Senate by a vote of 78 to 22 on September 29, 2005.

Supreme Court leadership and opinions

Roberts thereafter cultivated a reputation as an institutionalist who would strive to protect the Supreme Court from interference by the executive or legislative branches, promoting the legitimacy of the Court as a neutral arbiter above ideology and partisan politics. In November 2018, after Republican Pres. Donald Trump repeatedly asserted that federal judges appointed by Democratic presidents were biased against him on political grounds, Roberts issued a very

rare statement to the press. “We do not have Obama judges or Trump judges, Bush judges or Clinton judges,” Roberts declared. “What we have is an extraordinary group of dedicated judges doing their level best to do equal right to those appearing before them.”

Although political ideology alone cannot explain the decision making of any Supreme Court justice, the voting records of justices do exhibit recurring patterns, which have been shown to correlate with ideology. Such analyses demonstrate that Roberts’s voting record is generally consistent with the policy preferences and judicial philosophies of political conservatives. Under Roberts’s leadership, the Court tended to embrace legal interpretations that pushed U.S. constitutional law in conservative directions on abortion, affirmative action, campaign finance, federalism, gun rights, LGBTQ rights, religious liberty, and voting rights.

Majority opinions written or joined by Roberts

In 2018 Roberts wrote the opinion for a 5–4 conservative majority in *Trump* v. *Hawaii*, which upheld Pres. Trump’s executive order restricting the immigration of foreign nationals from eight countries, six of which had populations that were predominantly Muslim. Trump’s order had been criticized for allegedly targeting members of a particular religion in violation of the establishment clause of the First Amendment, which forbids Congress from establishing a state religion. In his opinion, Roberts characterized the Immigration and Nationality Act (INA; 1952) as giving the president “broad discretion” over enforcing its provisions and concluded that the order was within the president’s power given the general authority granted by the INA, the absence of any explicit mention (in the order itself) of a goal of blocking the immigration of Muslims, and the existence of alternative, neutral reasons for limiting travel from the listed countries. In another opinion for a conservative majority, in *Rucho* v. *Common Cause* (2019), Roberts held that partisan gerrymandering of U.S. congressional districts by state legislatures presents a “nonjusticiable…political question” that the courts cannot oversee.

Other conservative majority opinions written by Roberts include *Espinoza* v. *Montana Department of Revenue* (2020), which found that a state constitutional provision banning government aid for religious schools could not be applied to a

program providing tuition assistance for children attending private schools; and *Loper Bright Enterprises, Inc.* v. *Raimondo* (2024), which overturned an earlier Court decision establishing *Chevron* deference, the requirement that courts defer to federal regulatory agencies in the latter's reasonable interpretation of ambiguous federal statutes. Among the most controversial of Robert's majority opinions are *Trump* v. *United States* (2024), which rendered U.S. presidents absolutely or presumptively immune from criminal prosecution for official acts; *United States* v. *Skrmetti* (2025), which upheld state laws banning gender-affirming medical care; and *Learning Resources* v. *Trump* (2026), which held that the International Emergency Economic Powers Act (IEEPA) of 1977 does not give the president the power "to unilaterally impose unbounded tariffs."

In his majority opinions, Roberts evinced a color-blind conservatism that was skeptical of race-conscious government interventions designed to remedy current inequities traceable to past discrimination. In *Parents Involved in Community Schools* v. *Seattle School District No. 1* (2007), for example, Roberts wrote an opinion—joined by the four other conservative justices—finding that public-school assignment plans that sought to prevent racial segregation by providing for racial balancing across schools violated the equal protection clause of the Fourteenth Amendment. Concluding his opinion (in a part joined only by Justices Antonin Scalia, Clarence Thomas, and Alito), Roberts wrote "[t]he way to stop discrimination on the basis of race is to stop discriminating on the basis of race." Similarly, in *Shelby County* v. *Holder* (2013), Roberts, writing for a conservative majority, struck down the Voting Rights Act's formula for determining which jurisdictions were subject to federal government "preclearance" before making changes to electoral rules and procedures. The 1965 act mandated that jurisdictions with a history of discrimination with respect to voting clear with the federal government all changes to voting rules before their implementation. The VRA was reauthorized in 2006 without any update to the original formula for determining covered jurisdictions. In his opinion, Roberts wrote "[t]here is no denying…that the conditions that originally justified these measures no longer characterize voting in the covered jurisdictions," which meant that the extraordinary and disparate treatment of states could no longer be justified. Roberts's reasoning in both opinions was stridently criticized by advocates of

racial justice for its apparent ignorance of or indifference to the long history racial discrimination in the U.S. and its persistent effects on society. Ginsburg, in her dissent in *Shelby County*, chided Roberts, asserting that "throwing out preclearance when it has worked and is continuing to work to stop discriminatory changes is like throwing away your umbrella in a rainstorm because you are not getting wet."

Roberts regularly joined his fellow Republican-appointed justices in closely divided, high-profile cases. He joined conservative majorities in *Gonzales* v. *Carhart* (2007), upholding the federal Partial-Birth Abortion Ban Act; *Ledbetter* v. *Goodyear Tire & Rubber Co.* (2007), applying a statute of limitations to a gender-discrimination lawsuit even though the plaintiff did not know of the discrimination until afterward; *District of Columbia* v. *Heller* (2008) and *McDonald* v. *City of Chicago* (2010), ruling that the Second Amendment protects an individual right to possess firearms and limiting gun-control regulations that can be passed by the federal or state governments; *Citizens United* v. *Federal Election Commission* (2010), finding that the First Amendment's free speech clause prevents Congress from restricting spending on "electioneering" (political advertisements) by corporations and unions; *Town of Greece* v. *Galloway* (2014), finding that legislatures may open their sessions with public prayers without violating the First Amendment's establishment of religion clause ("Congress shall make no law respecting an establishment of religion"); *Burwell* v. *Hobby Lobby Stores* (2014), ruling that closely held for-profit corporations are entitled to refuse, on religious grounds, to pay for otherwise legally mandated coverage of certain contraceptive drugs in their employees' health insurance plans; *Glossip* v. *Gross* (2015), upholding a state's use of a particular drug—alleged to cause severe pain—in executions; *Janus* v. *American Federation of State, County, and Municipal Employees, Council 31* (2018), finding that a state law that required all public employees to contribute fees toward a public-sector labor union violated the First Amendment's protection of free speech; *Dobbs* v. *Jackson Women's Health Organization*(2022), overturning the Court's earlier rulings in *Roe* v. *Wade* (1973) and *Planned Parenthood of Southeastern Pennsylvania* v. *Casey* (1992), based on the *Dobbs* court's finding that *Roe*'s majority had incorrectly recognized a constitutional right to abortion; and *Trump* v. *Anderson* (2024), a unanimous ruling

that vacated a state supreme court's removal of Donald Trump from the state's Republican primary ballot owing to his efforts to overturn the presidential election of 2020.

Of course, not all of the opinions written or joined by Roberts were agreed upon only by conservative justices. For example, Roberts's opinion in *Trinity Lutheran Church of Columbia* v. *Comer* (2017), which found that a state program that excluded churches from receiving state aid purely because they were churches violated the free exercise clause, was joined by all the other justices except Ruth Bader Ginsburg and Sonia Sotomayor. Likewise, in *Masterpiece Cakeshop* v. *Colorado Civil Rights Commission* (2018), Roberts joined a seven-justice majority (again with Ginsburg and Sotomayor dissenting) that held that the free exercise clause prohibited a state public accommodations law from requiring a baker to make a cake for a same-sex couple.

Dissenting opinions written or joined by Roberts

Despite its clearly rightward orientation, the decisions of the Roberts Court were not always consistent with the views of judicial conservatives. In cases decided by liberal and moderate justices, Roberts and his usual decision partners wrote or joined dissenting opinions reflecting their conservative interpretation of the issues involved. In *Obergefell* v. *Hodges* (2015), for example, the Court's majority ruled that the Fourteenth Amendment establishes a nationwide right to same-sex marriage. In a dissent, Roberts compared the majority's ruling to *Dred Scott* v. *John F.A. Sandford* (1857) and *Lochner* v. *New York* (1905), two notorious decisions widely considered to be among the worst that the Supreme Court has ever issued. In *Fisher* v. *University of Texas* (2016), which upheld a state university's limited use of race in admissions decisions, Roberts joined a dissent written by Justice Samuel A. Alito, Jr., that characterized the plan as "systematic racial discrimination" that was not constitutionally justified. And in *Whole Woman's Health* v. *Hellerstedt* (2016), in which the majority struck down a state regulation of abortion providers as imposing an "undue burden" on a woman's right to choose to terminate her pregnancy, Roberts joined another dissent by Alito that criticized the majority opinion as "indefensible" and predicted that it would "undermine public confidence in the Court as a fair and neutral arbiter."

Partly liberal or moderate decisions written or joined by Roberts

In 2020 Roberts wrote majority opinions for the Court in two cases concerning subpoenas issued to private firms for financial and tax records related to Pres. Donald Trump and his businesses. In *Trump* v. *Vance* (2020), the subpoenas concerned documents relevant to an investigation by the Manhattan district attorney into possible violations of New York state law. Roberts's opinion, joined in full by the four liberal justices, rejected Trump's claim of absolute immunity from any obligation to produce evidence in state criminal proceedings and dismissed Trump's assertion that state criminal subpoenas related to the president must meet a heightened standard relative to ordinary criminal subpoenas. (The four other conservative justices endorsed Roberts's first conclusion, rendering it unanimous, and accepted his second conclusion to varying degrees.) The Court remanded the case to a lower court to determine whether Trump would have to comply and if so, when. Similarly, in *Trump* v. *Mazars USA*, the Court considered subpoenas issued by three committees of the House of Representatives and Trump's opposing claim that congressional subpoenas for the president's personal information must also meet a higher standard, beyond that of serving a valid legislative purpose. Roberts, writing for a 7–2 majority, dismissed Trump's argument but also held that the lower courts had not adequately considered the "significant separation of powers issues" involved. The Court remanded the case with guidelines for assessing the validity of the subpoenas in light of both "the significant legislative interests of Congress and the 'unique position' of the President."

In 2012 Roberts became the focal point of discussion and debate surrounding the Court's determination of the constitutionality of components of the Patient Protection and Affordable Care Act (often called the Affordable Care Act [ACA] or "Obamacare"). The ACA was designed to increase access to affordable health insurance. Democrats, enjoying a large majority in the House of Representatives and a (temporary) filibuster-proof majority in the Senate following the 2008 elections, passed the legislation, which was then signed into law by Democratic Pres. Barack Obama on March 23, 2010. Every Republican in Congress voted against the law, which was widely criticized in conservative circles.

Having lost the legislative battle over the ACA, an informal collection of conservative, libertarian, and Republican activists, organizations, and government officials turned to the courts for redress, arguing that the ACA exceeded the federal government's powers under the U.S. Constitution. Ultimately this legal challenge made its way to the Supreme Court via *National Federation of Independent Business* v. *Sebelius* (2012). That case challenged two elements of the ACA: its "individual mandate," which obligated individuals to provide proof of health insurance coverage or pay an extra amount on their income taxes, and its "Medicaid expansion," which required states to expand the eligibility criteria for citizens to receive Medicaid coverage or forfeit all federal Medicaid subsidies. Supreme Court experts predicted a closely divided vote: the four justices appointed by Democratic presidents were widely expected to uphold the ACA, and three Republican-appointed justices (Scalia, Thomas, and Alito) were widely expected to find the ACA unconstitutional. Roberts and Kennedy were seen to be the decisive votes.

Roberts ended up being the pivotal vote in the decision. In his majority opinion, he was joined by four liberal-leaning justices in upholding the ACA's individual mandate, saving that element of the ACA. Nevertheless, he joined the four other conservative justices, along with Stephen Breyer and Elena Kagan, in making the ACA's expansion of Medicaid voluntary for the states.

Roberts's ruling regarding the individual mandate was criticized by conservative activists as a betrayal. Such complaints were amplified by news reports that Roberts had changed his mind after initially indicating to his fellow justices that he would find the mandate unconstitutional and that he had negotiated with Breyer and Kagan to gain their votes regarding Medicaid expansion in exchange for his vote on the mandate. But as a legal matter, Roberts's decision was complicated and could not be simply labeled as "liberal." Although Roberts embraced the argument of the ACA's critics that the mandate exceeded Congress's authority under the commerce clause (a view then outside the mainstream of commerce clause jurisprudence), he ultimately upheld the mandate on the grounds that it was properly understood not as a penalty (which Congress could not impose except under the commerce clause) but as a tax, which would fall squarely within

Congress's powers under the taxing and spending clause (Article I, Section 8). Roberts's decision was viewed by conservatives as having rescued onerous and unconstitutional liberal legislation and by liberals as having imposed novel conservative-inspired constraints on the national government. Others, however, praised the decision for what they saw as its split-the-difference judiciousness.

In 2020 Roberts surprised Court watchers by joining two seemingly liberal majority opinions. In *Bostock* v. *Clayton County* (2020), Roberts and the four liberal justices joined an unexpected opinion by the conservative Neil Gorsuch finding that employers cannot fire workers for being gay or transgender without violating Title VII of the Civil Rights Act (1964), which prohibits discrimination "on the basis of sex." And, in *Department of Homeland Security* v. *Regents of the University of California* (2020), Roberts joined the liberal justices in finding that the Trump administration's termination of the Deferred Action for Childhood Arrivals (DACA) program—which protected from deportation some 700,000 undocumented immigrants who had been brought to the United States as children—did not comply with legally required administrative procedures. He also joined the Court's liberal bloc in striking down a Louisiana law restricting abortions in *June Medical Services* v. *Russo* (2020), though his rationale was much more limited than that of his liberal colleagues. In a separate opinion concurring in the judgment, he explained that the Court was bound by the precedent of *Whole Woman's Health* v. *Hellerstedt* (2016), a case in which he dissented and which he "continue[s] to believe…was wrongly decided."

Roberts's status as a median justice

Obergefell, *Fisher*, and *Whole Woman's Health* were each decided by an iteration of the Roberts Court on which Justice Anthony Kennedy, who filled the vacancy left by Lewis F. Powell, Jr.'s retirement in 1987, served as "median" justice, a term applied to the justice in the ideological middle relative to other justices. (Prior to her retirement in 2006, O'Connor had been the Court's median justice.) In each of these cases, Kennedy joined the Democratic-appointed justices to form a majority. With Kennedy's retirement and subsequent replacement by Justice Brett Kavanaugh in 2018, Roberts himself became the median justice, making him the pivotal vote in many closely divided cases. The change in median justice from O'Connor to the more-conservative Kennedy moved the Court in a conservative

direction, and Supreme Court watchers expected the change in median justice from Kennedy to the more-conservative Roberts to have a similar effect on the overall ideological tilt of the Court's decisions. That expectation was strengthened and eventually realized with the later appointment of another conservative justice, Amy Coney Barrett, in 2020, which gave the Court's conservative wing a 6–3 advantage. Following Barrett's appointment and her first few years on the Court, the identity of the median justice became a matter of debate.

Other duties performed by Roberts

Roberts's duties as chief justice extended beyond the Supreme Court's chambers. He administered the oath of office of the president of the United States to Obama in 2009 and 2013 and to Donald Trump in 2017. At Obama's 2009 inauguration, Roberts—after being briefly interrupted by Obama—misstated the oath in the swearing-in ceremony in front of the U.S. Capitol, asking Obama to declare "that I will execute the Office of President to the United States faithfully" instead of "that I will faithfully execute the Office of President of the United States," as written in the Constitution. Roberts administered the correct oath to Obama at the White House the next day. In 2020 Roberts presided over Trump's impeachment trial in the Senate, which resulted in Trump's acquittal on all charges. Roberts continued a tradition, begun by Chief Justice Warren Burger, of writing an annual "Year-End Report on the Federal Judiciary." In his reports Roberts praised the work of the personnel and programs of the federal judiciary, explained new or changed rules and processes, and pleaded for better pay for federal judges.

Roberts received national attention for an unconventional commencement address he gave at his son's middle school on June 3, 2017. In the speech Roberts declined to wish the graduates good luck. He instead expressed hope that they would endure unfairness, betrayal, loneliness, bad luck, loss, being ignored, and pain so that they would learn the value of, in turn, justice, loyalty, friends, the role of chance, sportsmanship, listening to others, and compassion.

Roberts and his wife, Jane Sullivan Roberts, have two children, Josephine and Jack.

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